

POLITY 20 — STATE LEGISLATURE

Articles 168-213 | institution -> procedure -> accountability -> review

1

CORE CONCEPT AND CONSTITUTIONAL ORIGIN

CENTRAL IDEA

Articles 168-212 create the State legislature: Governor + Assembly in every State, with a Council only where the Constitution and an Article 169 law provide one.

ORIGIN / TIMELINE

1861-1935: colonial legislative councils widen representation but retain executive dominance.

1935 Act: provincial autonomy and bicameral experience influence Constitution-making.

1950: Part VI, Chapter III commences.

1957/1985/2007: Andhra Pradesh Council created, abolished, and revived.

1969: Punjab and West Bengal Councils abolished by parliamentary laws.

1986: Tamil Nadu Council abolished; later revival legislation did not become operational.

2019: former Jammu and Kashmir Council ended through reorganisation.

DESIGN VERDICT

Assembly = direct mandate + confidence + supply + final ordinary-Bill control.

Council = optional continuity + reconsideration, never a co-equal federal chamber.

2

ARTICLES 168-177: COMPOSITION, DURATION, SESSIONS AND PARTICIPATION

ARTICLE 168 -> Governor plus one or two Houses; Governor is not a House member.

ARTICLE 169 -> Assembly total-membership majority + two-thirds present/voting;

Parliament may then create/abolish Council by ordinary law, not Article 368 amendment.

ARTICLE 170 -> Assembly directly elected from territorial constituencies; ordinary range 60-500, subject to constitutional/statutory exceptions and delimitation controls.

ARTICLE 171 -> Council <= one-third Assembly and >=40; 1/3 local bodies, 1/12 graduates, 1/12 teachers, 1/3 MLAs elect non-MLAs, remainder nominated for named fields.

ARTICLE 172 -> Assembly five years unless dissolved; Council continuing body.

ARTICLE 173 -> citizenship, oath-related requirement, age 25 Assembly / 30 Council, statutory qualifications.

ARTICLE 174 -> summon/prorogue/dissolve Assembly; no fixed session count; six-month maximum gap rule.

ARTICLE 175 -> Governor may address either/both Houses and send messages.

ARTICLE 176 -> special address after general election and first session each year.

ARTICLE 177 -> Ministers and Advocate-General may participate; vote follows membership.

3

ARTICLES 178-193: OFFICERS, OATH, VOTING, VACANCY AND DISQUALIFICATION

ARTICLES 178-181 -> Assembly Speaker/Deputy Speaker: election, vacancy, acting and removal safeguards.

ARTICLES 182-185 -> Council Chairman/Deputy Chairman mirror, without Assembly-dissolution rule.

ARTICLE 186 -> salaries/allowances fixed by State law; constitutional interim protection.

ARTICLE 187 -> separate State-legislature secretarial staff; State law may regulate service conditions.

ARTICLE 188 -> oath/affirmation before Governor or appointed person before taking seat.

ARTICLE 189 -> majority present/voting; chair's casting vote; vacancies do not invalidate;

default quorum ten or one-tenth, whichever greater, until State law provides otherwise.

ARTICLE 190 -> double membership, resignation accepted only if voluntary/genuine, and sixty-day absence route with constitutional exclusions.

ARTICLE 191 -> office of profit, court-declared unsound mind, insolvency, citizenship/allegiance, parliamentary-law grounds; clause (2) adds Tenth Schedule.

ARTICLE 192 -> Governor decides Article 191(1) sitting-member questions and must follow ECJ opinion.

3

ARTICLES 178-193: OFFICERS, OATH, VOTING, VACANCY AND DISQUALIFICATION

ARTICLES 178-181 -> Assembly Speaker/Deputy Speaker: election, vacancy, acting and removal safeguards.
ARTICLES 182-185 -> Council Chairman/Deputy Chairman mirror, without Assembly-dissolution rule.
ARTICLE 186 -> salaries/allowances fixed by State law; constitutional interim protection.
ARTICLE 187 -> separate State-legislature secretarial staff; State law may regulate service conditions.
ARTICLE 188 -> oath/affirmation before Governor or appointed person before taking seat.
ARTICLE 189 -> majority present/voting; chair's casting vote; vacancies do not invalidate;
default quorum ten or one-tenth, whichever greater, until State law provides otherwise.
ARTICLE 190 -> double membership, resignation accepted only if voluntary/genuine,
and sixty-day absence route with constitutional exclusions.
ARTICLE 191 -> office of profit, court-declared unsound mind, insolvency, citizenship/allegiance,
parliamentary-law grounds; clause (2) adds Tenth Schedule.
ARTICLE 192 -> Governor decides Article 191(1) sitting-member questions and must follow ECI opinion.
ARTICLE 193 -> Rs 500 per day liability for knowingly sitting/voting without oath or while barred.

4

PRIVILEGES, ETHICS AND JUDICIAL BOUNDARIES

ARTICLE 194
speech/vote and authorised-publication immunity + House/member/committee privileges.
Protection is functional; it is not a licence for bribery or unrelated criminality.
ARTICLE 195 -> member salaries/allowances by State law.

1978 - 44TH AMENDMENT, SECTION 26
amended Article 194(3): removed the House of Commons reference and preserved the
pre-commencement privilege baseline until the State Legislature defines privileges by law.

SPECIAL REFERENCE NO. 1 OF 1964 / KESHAV SINGH (1965)
Legislative privilege and judicial power must coexist; jurisdictional constitutional questions remain reviewable.
RAJA RAM PAL (2007)
Expulsion/privilege power exists, but substantive illegality, mala fides and unconstitutionality remain reviewable.
AMARINDER SINGH (2010)
Punjab Assembly could not use privilege-based expulsion for conduct lacking the required nexus to House functioning.
SITA SOREN (2024)
Articles 105/194 do not immunise bribery connected with speech or vote.

ARTICLE 212 SHIELD
mere procedural irregularity is protected; substantive illegality is not.

5

ORDINARY BILLS, DEADLOCK AND LAPSE

ARTICLE 196 BASELINE
ordinary Bill may originate in either House in a bicameral State; prorogation does not lapse Bills.

ARTICLE 197 ASSEMBLY OVERRIDE
Assembly passes -> Council rejects / disagrees / holds >3 months
-> Assembly repasses in same or next session
-> Council rejects / disagrees / holds >1 month
-> Bill deemed passed in Assembly's second-passage form.

NO STATE JOINT SITTING
Article 108 is a Union mechanism; there is no State counterpart.

LAPSE ON ASSEMBLY DISSOLUTION
pending in Assembly -> lapses.
passed by Assembly, pending in Council -> lapses.
pending in Council, not passed by Assembly -> does not lapse.
passed by required House(s), awaiting Governor/President -> does not lapse.

COUNCIL-ORIGINATED BILL
If Assembly rejects it, Article 197 supplies no Council override.

ARTICLE 197 ASSEMBLY OVERRIDE
Assembly passes -> Council rejects / disagrees / holds >3 months
-> Assembly repasses in same or next session
-> Council rejects / disagrees / holds > 1 month
-> Bill deemed passed in Assembly's second-passage form.

NO STATE JOINT SITTING
Article 108 is a Union mechanism; there is no State counterpart.

LAPSE ON ASSEMBLY DISSOLUTION
pending in Assembly -> lapses.
passed by Assembly, pending in Council -> lapses.
pending in Council, not passed by Assembly -> does not lapse.
passed by required House(s), awaiting Governor/President -> does not lapse.

COUNCIL-ORIGINATED BILL
If Assembly rejects it, Article 197 supplies no Council override.

6

MONEY BILLS, FINANCIAL BILLS AND ASSEMBLY PRIMACY

ARTICLE 198
Money Bill: Assembly-only introduction on Governor's recommendation;
Council may recommend within 14 days; Assembly accepts or rejects.
ARTICLE 199
only listed matters + incidental matters qualify; Assembly Speaker certifies.
ARTICLE 207(1) FINANCIAL BILL-I
contains Article 199(1)(a)-(f) matter plus other matter;
Governor recommendation + Assembly-only introduction; then ordinary-Bill treatment.
ARTICLE 207(3) FINANCIAL BILL-II
would involve expenditure from Consolidated Fund;
may originate either House, but cannot be passed without recommendation for consideration.

ASSEMBLY PRIMACY
confidence under Article 164(2) + grants under Article 203 + Money Bill control.
Council neither removes ministry nor votes demands for grants.

TRAP
expenditure consequence alone does not convert every Financial Bill into a Money Bill.

7

ARTICLES 200-201: ASSENT AND RESERVATION AFTER THE 2025 DOCTRINE

ARTICLE 200 - THREE CONSTITUTIONAL OPTIONS (2025 INSC 1333)
1 assent;
2 reserve for President;
3 withhold and return with comments, only for a non-Money Bill.
First proviso restricts/implements withholding; it is not a fourth free-standing option.
Second proviso mandates reservation if High Court powers are derogated so as to endanger its position.

ARTICLE 201
President may assent or withhold; may direct return of a non-Money Bill through Governor.
State House(s) reconsider within six months; re-passage does not compel presidential assent.

STATE OF PUNJAB (10 NOV 2023)
No indefinite inaction; withholding linked to return under the first proviso.
STATE OF TAMIL NADU (8 APR 2025, 2025 INSC 481)
On its facts invalidated second-round reservation, prescribed timelines and used Article 142 deemed assent.
ARTICLE 143 OPINION (20 NOV 2025, 2025 INSC 1333)
Called general timeline/deemed-assent reasoning erroneous; no rigid clock or deemed assent;
no pre-enactment merits review; limited mandamus for glaring prolonged unexplained inaction.
It advised on law; it did not appellate-set aside the Tamil Nadu inter partes relief.

8

ARTICLES 202-207: BUDGET, GRANTS AND APPROPRIATION

ARTICLE 202 -> annual financial statement: receipts/expenditure; charged versus voted.
ARTICLE 203 -> charged expenditure discussed, not voted; Assembly alone votes demands for grants.
Governor recommendation is required for a demand.
ARTICLE 204 -> Appropriation Bill authorises withdrawal from Consolidated Fund;
no amendment may vary amount/destination or charged expenditure.

ARTICLE 143 OPINION (20 NOV 2025, 2025 INSC 1333)
Called general timeline/deemed-assent reasoning erroneous; no rigid clock or deemed assent;
no pre-enactment merits review; limited mandamus for glaring prolonged unexplained inaction.
It advised on law; it did not appellate-set aside the Tamil Nadu inter partes relief.

8

ARTICLES 202-207: BUDGET, GRANTS AND APPROPRIATION

ARTICLE 202 -> annual financial statement: receipts/expenditure; charged versus voted.
ARTICLE 203 -> charged expenditure discussed, not voted; Assembly alone votes demands for grants.
Governor recommendation is required for a demand.
ARTICLE 204 -> Appropriation Bill authorises withdrawal from Consolidated Fund;
no amendment may vary amount/destination or charged expenditure.
ARTICLE 205 -> supplementary, additional and excess grants use the Articles 202-204 logic.
ARTICLE 206 -> vote on account, vote of credit and exceptional grant.
ARTICLE 207 -> recommendation and introduction controls for financial Bills.

ACCOUNTABILITY CHAIN
estimate -> debate -> grant vote -> appropriation -> execution -> audit -> PAC follow-up.
COUNCIL LIMIT
may discuss the financial statement but cannot vote grants or overcome Assembly control.

9

QUESTIONS, MOTIONS, COMMITTEES AND LOCAL HOUSE PRACTICE

CONSTITUTIONAL TEXT
Article 164(2): ministry collectively responsible to Assembly.
Article 208: each House makes procedural rules, subject to Constitution.
Articles 202-207: financial accountability framework.

LOCAL HOUSE RULES / DIRECTIONS / CONVENTIONS
Question Hour, Zero Hour or special mention, calling attention, short-duration discussion,
adjournment/censure/no-confidence motions, cut motions, privilege procedure and committee details.
Names, notices, admissibility, membership and referral vary by State.

COMMITTEE FUNCTIONS
PAC -> appropriation and CAG-linked audit.
Estimates -> economy, efficiency and estimate presentation.
Public Undertakings -> State enterprise scrutiny.
Privileges/Ethics/Petitions/Subordinate Legislation/subject committees -> specialised control.

HARD LIMIT
Do not copy Lok Sabha rule numbers, committee sizes or a fixed DRSC structure into every State.

10

ANTI-DEFECTION, SPEAKER NEUTRALITY AND CASE CHRONOLOGY

1985 - 52ND AMENDMENT, SECTION 5
inserted Article 191(2); section 6 inserted Tenth Schedule.
2003 - 91ST AMENDMENT, SECTION 5
removed paragraph 3 split protection; two-thirds merger protection remains under paragraph 4.

KIHOTO HOLLOHAN (1992)
Presiding officer is a tribunal; final decision is judicially reviewable on recognised grounds.
RAVI NAIK (1994)
Voluntarily giving up membership may be inferred from conduct, not only formal resignation.
RAJENDRA SINGH RANA (2007)
Speaker cannot avoid deciding disqualification by accepting an unsupported split claim.
NABAM REBIA (2016)
Speaker-removal notice restricted adjudication; correctness referred by SUBHASH DESAI (2023).
KEISHAM MEGHACHANDRA (2020)
Absent exceptional circumstances, petitions should ordinarily be decided within three months;
Court urged Parliament to consider an independent tribunal.
SUBHASH DESAI (2023)

ANTI-DEFECTION, SPEAKER NEUTRALITY AND CASE CHRONOLOGY

1985 - 52ND AMENDMENT, SECTION 5
inserted Article 191(2); section 6 inserted Tenth Schedule.
2003 - 91ST AMENDMENT, SECTION 5
removed paragraph 3 split protection; two-thirds merger protection remains under paragraph 4.

KIHOTO HOLLOHAN (1992)
Presiding officer is a tribunal; final decision is judicially reviewable on recognised grounds.
RAVI NAIK (1994)
Voluntarily giving up membership may be inferred from conduct, not only formal resignation.
RAJENDRA SINGH RANA (2007)
Speaker cannot avoid deciding disqualification by accepting an unsupported split claim.
NABAM REBIA (2016)
Speaker-removal notice restricted adjudication; correctness referred by SUBHASH DESAI (2023).
KEISHAM MEGHACHANDRA (2020)
Absent exceptional circumstances, petitions should ordinarily be decided within three months;
Court urged Parliament to consider an independent tribunal.
SUBHASH DESAI (2023)
Political party, not a legislature-party faction, appoints the authorised whip/leader;
larger-Bench reference leaves Nabam Rebia issue unresolved.
PADI KAUSHIK REDDY (31 JUL 2025)
Review survives and Telangana petitions received a case-specific three-month direction.

REPRESENTATION, AMENDMENTS, COUNCIL COMPARISON AND ARTICLE 213

1976 - 42ND AMENDMENT, SECTION 38
amended Article 170 delimitation/readjustment framework and introduced the freeze architecture.
2001 - 84TH AMENDMENT, SECTION 5
amended Article 170: extended freeze to first post-2026 census publication and enabled limited readjustment.
2003 - 87TH AMENDMENT, SECTION 4
substituted 2001 for 1991 census references in Article 170.
2019 - 104TH AMENDMENT, SECTION 2
amended Article 334: SC/ST reservation extended; Anglo-Indian special representation ceased after its period.
2023 - 106TH AMENDMENT, SECTIONS 2-5
inserted Delhi clauses and Articles 330A, 332A, 334A; one-third reservation for women in
Lok Sabha/Assemblies, including within SC/ST seats, operates after Article 334A census-delimitation sequence.
It does not cover Legislative Councils.
S.O. 1922(E), 16 April 2026 commenced the Amendment; commencement did not itself activate reserved seats.

ARTICLE 213 ORDINANCE
specified House-recess condition + immediate-action satisfaction + State legislative competence;
Act-like force, mandatory laying and expiry six weeks after later reassembly unless earlier ended.
D.C. WADHWA (1987) and KRISHNA KUMAR SINGH (2017) reject routine repromulgation.

PRELIMS TRAPS, REFORM AND MAINS ANSWER SPINE

PRELIMS FIREWALL
Governor is legislature component, not House member.
Article 169: Assembly special majority; Parliament ordinary law.
Article 174: six-month maximum gap; no fixed three sessions or annual sitting minimum.
Council: 3+1 month ordinary-Bill delay; 14-day Money-Bill recommendation; no joint sitting.
Article 192 route excludes Tenth Schedule.
Article 212 shields procedural irregularity, not illegality.
Article 213 is temporary and competence-bound.
No invented current Council strength or uniform House-rule number.

REFORM MENU
minimum evidence-based sitting calendar; default committee scrutiny with stated exceptions;
research and drafting support; protected Question Hour; reasoned/timely chair rulings;
narrower confidence-linked whip; independent defection tribunal debate;
modernise Council electorates and nominations; post-legislative review.

MAINS SPINE
define -> locate exact Article -> classify text/statute/rule/convention/judgment
-> explain mechanism -> name evidence -> test democratic/accountability effect
-> state exception/status -> targeted reform -> qualified verdict.

VERDICT
Assembly primacy is constitutionally deliberate; legitimacy improves when primacy is matched
by deliberation, impartial procedure, financial scrutiny and reviewable constitutional boundaries.